

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Paul Baron	Team: Team # 4	CCRB Case #: 201100993	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 01/19/2011 11:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/19/2012	Precinct: 44
Date/Time CV Reported Wed, 01/19/2011 11:17 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/24/2011 5:05 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Johnny Orellana	00000	920679	044 PCT
2. LT Benjamin Gurley	00000	925405	044 PCT
3. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Sujin Samuel	31101	939410	044 PCT
2. POM Edwin Reyes	05502	939296	044 PCT
3. POM Ernest Junious	07717	941980	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Benjamin Gurley	Abuse: Lt. Benjamin Gurley frisked § 87(2)(b)	A . Exonerated
B . Officers	Abuse: Officers frisked § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . LT Benjamin Gurley	Abuse: Lt. Benjamin Gurley searched § 87(2)(b)	C . Exonerated
D . LT Johnny Orellana	Abuse: Lt. Johnny Orellana threatened § 87(2)(b) with the use of force.	D . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed a complaint with IAB on January 20, 2011 (**enc. 4**), which was received by the CCRB on January 24, 2011 (**enc. 5**). He reported that on January 19, 2011, at approximately 11:00 PM, he was stopped by officers inside of § 87(2)(b) in the Bronx, while attempting to enter § 87(2)(b) with his friends § 87(2)(b) and § 87(2)(b). § 87(2)(b) and § 87(2)(b) were subsequently arrested by PO Nivia Fontanez, assigned to the 44th Precinct, for § 87(2)(a) 160.50. § 87(2)(b) was released without being summonsed or arrested. The following allegations resulted from the officers' actions:

Allegation A: Abuse of Authority- Lt. Benjamin Gurley frisked § 87(2)(b)

Allegation B: Abuse of Authority- Officers frisked § 87(2)(b) and § 87(2)(b)

Allegation C: Abuse of Authority- Lt. Benjamin Gurley searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations A, B and C** be closed as **exonerated**.

Allegation D: Abuse of Authority- Lt. Johnny Orellana threatened § 87(2)(b) with the use of force. § 87(2)(g) It is therefore

recommended that **Allegation D** be closed as **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) rejected mediation on February 7, 2011, § 87(2)(b)

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) *Hispanic male, § 87(2)(b) brown hair, brown eyes*
- § 87(2)(b)

§ 87(2)(b) provided a statement to the CCRB on February 7, 2011 (**enc. 6**). He reported that on January 19, 2011, at about 11:15 PM, he was driving in a car with his friends § 87(2)(b) and § 87(2)(b). § 87(2)(b) received a phone call stating that his apartment was being burglarized. § 87(2)(b) and § 87(2)(b) both called 911 to report the burglary and then drove to the apartment, § 87(2)(b), in the Bronx. In the hallway outside of the apartment, § 87(2)(b) observed two officers. § 87(2)(b) told the officers he lived there and provided them with his key. About twenty officers responded to the location. The officers opened the door, but someone on the inside pushed the door closed. § 87(2)(b)'s girlfriend § 87(2)(b) and two males named § 87(2)(b) and § 87(2)(b) had remained in the apartment since the burglary occurred. While in the hallway, Lt. Gurley frisked § 87(2)(b). A different officer frisked § 87(2)(b) and § 87(2)(b). The officers asked § 87(2)(b) and his friends for their identification, which only § 87(2)(b) provided. Lt. Gurley took § 87(2)(b)'s plastic shopping bag, which contained a pair of shoes and some papers. Lt. Gurley looked inside of the bag and then stuck his hand inside to search it.

§ 87(2)(b) and § 87(2)(b) were brought inside the apartment and sat down on the floor in the living room. § 87(2)(b) and § 87(2)(b) were handcuffed and eventually

everyone left the apartment, except for § 87(2)(b) Lt. Orellana, and PO Junious. § 87(2)(b) asked Lt. Orellana if he could take his bag and leave. Lt. Orellana told him to shut up. § 87(2)(b) asked Lt. Orellana what his problem was. Lt. Orellana asked § 87(2)(b) if he thought he was tough, and told § 87(2)(b) that he was going to “fuck [him] up.” Lt. Orellana asked § 87(2)(b) if he wanted to fight him. § 87(2)(b) said he would fight somewhere else if Lt. Orellana took off his uniform. After several minutes, Lt. Orellana escorted § 87(2)(b) out of the apartment.

Attempts to Contact Civilians

- Two interview attempts were scheduled with § 87(2)(b) for February 22, 2011, and March 1, 2011. He missed each interview without calling ahead to cancel or reschedule. To date, § 87(2)(b) has not contacted the CCRB (**enc. 20**).
- The undersigned spoke with § 87(2)(b) on February 18, 2011, who stated he did not speak English well and requested that a Spanish speaker call him back. Since then, the CCRB mailed two contact letters, written in Spanish, and left five voicemails in Spanish for § 87(2)(b) most recently on March 9, 2011. To date, he has not contacted the CCRB (**enc. 20**).

NYPD Statement(s):

Witness Officer: PO SUJIN SAMUEL

- § 87(2)(b) -year-old Asian male, black hair, brown eyes, § 87(2)(b)

Witness Officer: PO EDWIN REYES

- § 87(2)(b) -year-old Hispanic male, brown hair, brown eyes, § 87(2)(b)
- Both officers worked from 3:00 PM to 11:35 PM on January 19, 2011, 44th Precinct, Sector P, in uniform, marked sedan, #1473.

CCRB Statement

On April 20, 2011, the CCRB interviewed PO Sujin Samuel and PO Edwin Reyes (**enc. 10-11**). Their memo books corroborated their statements. PO Reyes and PO Samuel were the first officers to respond to the apartment, but they did not encounter any civilians in the hallway. About two minutes after they entered the apartment, two male civilians arrived in the hallway. Other officers interacted with these males, who stated that they had reported the burglary. PO Reyes and PO Samuel did not know if these males were ever frisked or if their property was searched. These males, plus the civilians that had already been in the apartment, were placed in the living room while an investigation was conducted. Two individuals were arrested, and PO Reyes and PO Samuel transported one of the arrested individuals to the stationhouse. PO Samuel and PO Reyes never heard Lt. Orellana threaten to fight any civilian or tell a civilian he would “fuck [them] up.”

Subject Officer: LT. BENJAMIN GURLEY

- § 87(2)(b) -year-old black male, black hair, brown eyes, § 87(2)(b)
- 1:45 PM to 10:30 PM on January 19, 2011, 44th Precinct, Impact Lieutenant, with Sgt. Diaz, in uniform, marked RMP, #3113.

CCRB Statement

On May 19, 2011, the CCRB interviewed Lt. Gurley (**enc. 8**). His memo book corroborated his statement. He reported that on January 19, 2011, at approximately 9:50 PM, he was working with Sgt. Diaz, when they received a radio run reporting a home invasion at § 87(2)(b). Lt. Gurley and Sgt. Diaz were the first to arrive at the location, along with PO Reyes and PO Samuel. The officers observed § 87(2)(b) and § 87(2)(b) standing outside of the apartment, in the hallway. A description of the suspects had been put over

the radio, but Lt. Gurley could not recall what it was, or if these males fit the description. Since the report was of a home invasion with a firearm, the officers immediately stopped and frisked the males, on suspicion that they may have been involved. The officers suspected that if they had been involved, they would also still have weapons on them. Lt. Gurley personally stopped and frisked § 87(2)(b) around his waistband, with negative results. He also took a plastic bag or knapsack stuffed with items, from § 87(2)(b)'s hand. Lt. Gurley felt the outside of the bag and then opened it to look inside, because he was unable to determine all of the bag's contents, particularly those at the top of the bag, which were covered by soft objects/papers. Lt. Gurley did not stick his hand inside of the bag. After the frisk was completed, the officers questioned the males, and eventually brought them all inside of the apartment. Lt. Gurley never heard Lt. Orellana have any conversation with § 87(2)(b) before he left the location.

Lt. Gurley did not fill out a stop and frisk report. Lt. Gurley stated that PO Reyes and PO Samuel, as the assigned officers, were responsible for all of the paperwork related to the incident (including stop and frisk reports). However, Lt. Gurley did not instruct them to fill out a stop and frisk report and did not know if one was ever filled out. Lt. Orellana had been present when the stop and frisk occurred.

Subject Officer: LT. JOHNNY ORELLANA

- § 87(2)(b)-year-old Hispanic male, black hair, brown eyes, § 87(2)(b)
- 2:45 PM to 11:30 PM on January 19, 2011, 44th Precinct, Platoon Commander, with PO Junious, in uniform, marked sedan, #3241.

CCRB Statement

On April 20, 2011, the CCRB interviewed Lt. Johnny Orellana (enc. 7). His memo book corroborated his statement. When PO Junious and Lt. Orellana arrived at the incident location, Lt. Gurley and several officers (including PO Reyes and PO Samuel) were in the process of stopping and frisking § 87(2)(b) and § 87(2)(b) in the hallway. Lt. Orellana did not observe any officers search § 87(2)(b)'s property. After the investigation concluded, the last people to leave the apartment were § 87(2)(b) Lt. Orellana and PO Junious. § 87(2)(b) told Lt. Orellana that he wanted to be arrested, to be with his friends. Lt. Orellana repeatedly told § 87(2)(b) to be quiet. Lt. Orellana did not recall cursing at § 87(2)(b) or telling him that he would “fuck him up.” He did not recall challenging § 87(2)(b) to a fight, but remembered that § 87(2)(b) told Lt. Orellana that he was a boxer and was going to “fuck [Lt. Orellana] up.”

Witness Officer: PO ERNEST JUNIOUS

- § 87(2)(b)-year-old black male, black hair, brown eyes, § 87(2)(b)
- 3:00 PM to 11:35 PM on January 19, 2011, 44th Precinct, Vehicle Operator for Lt. Orellana, in uniform, marked sedan, #3241.

CCRB Statement

PO Ernest Junious was interviewed at the CCRB on May 12, 2011 (enc. 9). § 87(2)(g) PO Junious did not recall observing any civilians get searched during the incident. PO Junious recalled that § 87(2)(b) spoke with Lt. Orellana and put up verbal resistance to leaving the location. However, he did not recall § 87(2)(b) or Lt. Orellana threatening to fight each other and did not recall Lt. Orellana stating that he would “fuck § 87(2)(b) up.”

NYPD Document(s)

Stop and Frisk Log

- There were no stop and frisk reports on file for the stop of § 87(2)(b) (enc. 15).

SPRINT and Radio Run

- On January 19, 2011, at 9:48 PM, dispatch reported a home invasion/burglary in progress, at § 87(2)(b). The burglary involved the use of a firearm, and witnesses observed three Hispanic males breaking into the apartment. Within approximately two minutes, Lt. Gurley, Sgt. Diaz, PO Reyes and PO Samuel arrived at the location (**enc. 12**).

Complaint Report/Arrest Reports

- § 87(2)(a) 160.50
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of May 9, 2011, with regard to the incident (**enc. 19**).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) or § 87(2)(b) (**enc. 3**).

Subject Officer(s) CCRB History

- Lt. Orellana has been a member of the service for thirteen years and there are no substantiated CCRB allegations against him (**enc. 2a-b**).
- Lt. Gurley has been a member of the service for eleven years and there are no substantiated CCRB allegations against him (**enc. 2c-d**).

Conclusion

Identification of Subject Officers

- Lt. Gurley confirmed stopping and frisking § 87(2)(b) and searching his bag. Lt. Orellana was identified by § 87(2)(b) by his name and physical description, and Lt. Orellana confirmed that he was speaking with § 87(2)(b) at the time the threat of force allegedly occurred.
- § 87(2)(b) and § 87(2)(b) were uncooperative with the investigation. § 87(2)(g)
[REDACTED]
[REDACTED]

Investigative Findings and Recommendations

Allegations Not Pled

- § 87(2)(g)
[REDACTED]
[REDACTED]

Allegation A: Abuse of Authority- Lt. Benjamin Gurley frisked § 87(2)(b)

Allegation B: Abuse of Authority- Officers frisked § 87(2)(b) and § 87(2)(b)

It is undisputed that Lt. Gurley stopped and immediately frisked § 87(2)(b) in the hallway directly outside of § 87(2)(b). It is undisputed that officers, who could not be identified by the investigation, also frisked § 87(2)(b) and § 87(2)(b). Lt. Gurley and the other officers responded to the apartment on a report of a home invasion involving the use of a firearm. The radio run indicated that witnesses observed three Hispanic males breaking into the apartment, and § 87(2)(b) and § 87(2)(b) are all Hispanic males. According to the NYPD Street Encounters Guide, for an officer to frisk a civilian, they have to have reasonable suspicion that a person has committed a felony, and must also reasonably suspect that they are in danger of physical injury (**enc. 1a**). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C: Abuse of Authority- Lt. Benjamin Gurley searched § 87(2)(b)

§ 87(2)(b) alleged that after Lt. Gurley frisked him, he took § 87(2)(b)'s plastic shopping bag from him and stuck his hand inside. Lt. Gurley confirmed taking the bag and looking inside it, but denied sticking his hand inside the bag. § 87(2)(g)

§ 87(2)(b). The home invasion had just transpired, § 87(2)(b) was within a few feet of the incident location, and was part of a group that matched the description of the suspects. The frisk of § 87(2)(b)'s person did not yield any weapons. Lt. Gurley stated that he could not determine the contents of § 87(2)(b)'s bag, because it was stuffed with papers. § 87(2)(b) confirmed that his bag contained hard items as well as some papers.

Kamins' Search and Seizure Guide indicates that in order for a warrantless search of a container to be valid, in the absence of an arrest, two criteria must be met. The search must be based on probable cause to believe that the property contained evidence of a crime, and the search must be based on a fear for the officer's safety or the need to protect evidence from concealment (**enc.1b-c**). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that **Allegation C** be closed as **exonerated**.

Allegation D: Abuse of Authority- Lt. Johnny Orellana threatened § 87(2)(b) with the use of force.

It is undisputed that prior to leaving the apartment, § 87(2)(b) got in an argument with Lt. Orellana that concerned Lt. Orellana not allowing § 87(2)(b) to retrieve some of his property. § 87(2)(b) alleged that during this interaction, Lt. Orellana challenged him to a fight and threatened to "fuck § 87(2)(b) up." Lt. Orellana alleged that § 87(2)(b) challenged him to a fight and threatened to "fuck [Lt. Orellana] up." PO Junious and Lt. Orellana did not recall Lt. Orellana challenging § 87(2)(b) to a fight, or threatening to "fuck § 87(2)(b) up." § 87(2)(g)

§ 87(2)(b)

It is therefore recommended that **Allegation D** be closed as **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

[Redacted text block]

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date